

CONSENT ORDER

This order is made by the investigation committee upon the respondent's acceptance of a proposal by the committee under section 73(1) of the *Professional Governance Act*.

Between

Association of BC Forest Professionals

("ABCFP")

And

Jeremy COVER, RPF #5099

("COVER")

Background

1. COVER has been licensed as a Registered Professional Forester ("RPF") since 2018.
2. COVER is employed by a major licensee (the "Licensee") as a Planning Forester.
3. The Licensee has a Forest Licence located in the central interior. The Licensee entered into a contract for services with a multi-phase forest development firm (the "Firm") to complete cut block development, including stream assessments and establishing road locations.
4. COVER's responsibilities include overseeing the cut block and Site Plan (SP) development plans completed by the Firm.

5. On August 30, 2023, there was a joint field inspection tour of multiple harvested cut blocks. Among others, the participants on this tour included COVER and members of a local First Nation, including the Complainant. The SP for one of the cut blocks being inspected had been completed by the Firm and COVER had signed it.
6. The Complainant expressed concerns that a culvert had been placed in a fish-bearing stream as part of the road development instead of a bridge or other crossing structure.
7. In addition to the concerns respecting the classification of the watercourse and crossing structure, the Complainant observed evidence of logging equipment crossing a 5-metre riparian machine-free zone (MFZ) and All-Terrain Vehicle (ATV) tracks in a fish-bearing stream.
8. The SP indicated that the watercourse was a Non-Classified Drainage (NCD). Due to the Complainant's concerns, COVER coordinated for an independent third-party professional biologist to be engaged to complete a re-assessment of the watercourse post-harvesting. The third-party re-assessment classified the watercourse as a stream that contained marginal fish habitat and identified that the installed culvert, though undersized, was at an appropriate gradient and sufficiently embedded to allow fish passage. The third party recommended that an overflow culvert be installed, and COVER and the Licensee arranged for this to occur.
9. On October 12, 2023, the ABCFP received a complaint against COVER (the "Complaint").
10. On November 27, 2023, the investigation committee authorized an investigation into the complaint.
11. COVER stated to ABCFP investigators that prior to signing the SP, COVER completed an office field review of the stream assessment and field review documents completed by the Firm's staff. In addition, COVER stated that he had

flown over the area several times in a helicopter but had not completed an in-person field review of the road crossing at issue.

12. The ABCFP investigators determined that COVER was not responsible for the ATV tracks in the fish-bearing stream or the breach of the 5m MFZ.
13. The ABCFP investigators determined there was sufficient evidence to show that COVER was responsible for the incorrect classification of the fish-bearing stream, which led to the installation of an inappropriate road crossing structure.
14. On July 29, 2024, the ABCFP sent COVER a copy of the investigation report and invited him to provide a response to the investigation findings. On August 26, 2024, COVER submitted his response to the investigation findings.
15. The investigation report and COVER's response were provided to the Investigation Committee. On October 4, 2024, the Investigation Committee convened to discuss the Complaint, the investigation report and COVER's response. The Investigation Committee voted unanimously to attempt to resolve the Complaint by requesting COVER agree to a Consent Order under section 73 of the *Professional Governance Act*.

Admissions

16. COVER admits, under section 73(3)(b) of the *Professional Governance Act*, that he:
 - (a) Did not complete a field check of the watercourse to confirm its recommended classification, such that an inappropriately sized road crossing structure was proposed, thereby failing to ensure his work was complete and correct, resulting in a contravention of Bylaw 9 Standard 4(a).
 - (b) Did not complete a field check of the watercourse to confirm its recommended classification, such that an inappropriately sized road

crossing structure was proposed, thereby failing to maintain high standards in his work, resulting in a contravention of Bylaw 9 Standard 5(a).

Disposition

17. In resolution of all matters arising in the investigation report, COVER consents to the Investigation Committee making the following orders:
 - (a) That COVER is reprimanded under section 75(6)(a) of the *Professional Governance Act*;
 - (b) That COVER must read the ABCFP Supervising the Practice of Professional Forestry – Practice Guidance, no later than April 30, 2025;
 - (c) That COVER must complete the ABCFP Code to Ethics and Professional Conduct training, no later than April 30, 2025;
 - (d) That COVER must complete the ABCFP Principles of Forest Stewardship course or an alternative course acceptable to the Audit and Practice Review Committee, under section 75(6)(f) of the *Professional Governance Act* no later than April 30, 2025; and
 - (e) That COVER must pay a fine of \$1,000 to the ABCFP.
18. COVER acknowledges that this consent order has the same effect as an order made by a panel of the Discipline Committee of the ABCFP after a hearing under section 75 of the *Professional Governance Act*.
19. COVER acknowledges that the ABCFP will be required under ABCFP Bylaw 13-7 to notify the public of this consent order by publishing a discipline digest on the ABCFP's website and in its newsletter that will contain a summary of the circumstances of this case, including the full text or summary of this order.

20. COVER acknowledges that he has read this consent order, fully understands its terms, and has voluntarily accepted it for fully and finally resolving all matters arising out of or related to the Complaint.
21. COVER understands that he has the right to seek independent legal advice and has been encouraged to seek such advice before signing this consent order.

This consent order has been proposed by the Investigation Committee and is accepted by COVER effective this 20th day of January 2025.



Bruce Blackwell, RPF
Chair, Investigation Committee



Jeremy COVER, RPF #5099



Witness